

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM05
HON. Judge Ebrahim Baytieh

Date: 06/26/2026

Court Room Rules and Notices

#	Case Name	Tentative
1	<u>Boudakian - Conservatorship</u>	Petitioners Sara Cegelski and Carl Boudakian’s Motion for Order to Show Cause re: Contempt Against Mariano Alvarez, Esq. (ROA 290) is GRANTED. Petitioners ask this court to issue an order to show cause why Mariano Alvarez, Esq. (“Alvarez”) should not be held in contempt for disobedience of orders issued by this court on October 2, 2023, in related Case No. 2023-01347338 and on October 16, 2023, November 9, 2023, and November 21, 2023, in related Case No. 2023-01347330. Petitioners contend the orders prohibited Alvarez from making any changes to Charles Boudakian’s testamentary plan or other powers pending further order of the court. They contend that, in violation of those orders, Alvarez prepared changes to Charles Boudakian’s estate plan and, while the orders were in effect, gave them to Boudakian for execution. Alvarez does not deny he prepared the changes nor that he provided the documents to Charles Boudakian while the orders were in effect. He argues, however, that the orders were outside of the court’s jurisdiction and, further, that Charles Boudakian exercised his right to execute the documents on his own and did so without Alvarez’s knowledge or participation. Disobedience of any lawful judgment, order or process of the court constitutes contempt of the authority of the court. (Code Civ. Proc., §1209(a)(5).) It is further settled that “[w]hen the contempt is not committed in the immediate view and presence of the court or judge, a warrant of attachment may be issued to bring the person charged to answer, or, without a previous arrest, a warrant of commitment may, upon notice, or upon an order to show cause, be granted; and no warrant of commitment can be issued without such previous attachment to answer, or such notice or order to show cause.” (Code Civ. Proc., §1212.) The substantive issues involved in a contempt proceeding are: (1) rendition of a valid order, (2) knowledge of the order, (3) ability to comply with the order, and (4) willful disobedience. (<i>Wanke, Industrial, Commercial, Residential, Inc. v. Keck</i> (2012) 209 Cal.App.4th 1151, 1168.)

	Based on the record presented, the court finds Petitioners have presented sufficient evidence of the foregoing factors to commence contempt proceedings against Alvarez under Code of Civil Procedure section 1212, and accordingly Petitioners' motion is GRANTED. The court sets an Order to Show Cause why Mariano Alvarez, Esq. should not be held in contempt on the ground he disobeyed one or more of the lawful orders of this court issued on October 2, 2023, October 16, 2023, November 9, 2023, and November 21, 2023. Petitioners are to submit, no later than Thursday, July 2, 2026, a proposed Order to Show Cause in re Contempt for the court's signature, containing substantially the following text: MARIANO ALVAREZ, ESQ, YOU ARE HEREBY ORDERED to appear before the above-entitled court in Department CM05, located at 3390 Harbor Boulevard, Costa Mesa, California, on July 17, 2026, at 9:30 AM, to show cause, if any, why you should not be adjudged guilty of contempt of court, and punished accordingly, for the acts of willful disobedience of the orders issued by this court on October 2, 2023 in related Case No. 2023-01347338 and on October 16, 2023, November 9, 2023 and November 21, 2023 in related Case No. 2023-01347330, as provided in section 1209(a)(5) of the California Code of Civil Procedure, and as more fully described in the Motion for Order to Show Cause re: Contempt Against Mariano Alvarez, Esq. (ROA 290), a copy of which, including supporting documents, is attached and incorporated by reference as though fully set forth. A copy of the motion including the supporting documents shall be served on you with a copy of this order. In order for the court to adjudge you guilty of contempt of court, the court must be satisfied of your guilt beyond a reasonable doubt, and the court will afford you all constitutional protections and safeguards afforded any person accused of contempt of court when such person is facing a potential punishment as required by law and all applicable statutes, including Code of Civil Procedure section 1218. The signed Order to Show Cause, with the attached motion and supporting documents, must be served on Alvarez in the same
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